

24SMCV03603 24SMCV03603

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-09

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This is a motion for judgment on the pleadings. It is based on an order of the court deeming certain requests for admission as admitted.

(A court can consider admissions as part of an MJOP even though outside the pleading. (Pang v. Beverly

Hospitals, Inc. (2000) 79 Cal.App.4th 986.)) Those admissions establish both liability and damages of \$80,000. In opposition,

defendant contends that the RFA's were in fact not deemed admitted. The actual order was that the motion to deem admitted was granted unless responses had been served before the hearing. Defendant contends that responses in fact were served before the hearing, although they were not verified. Defendant also states that because the answer contained denials, the MJOP cannot be granted.

The answer is irrelevant.

Where RFAs are deemed admitted, they will supersede denials in an answer. But the claim that the responses

in fact were served by email on October 23, 2025—8 days before the hearing—has more heft.

On June 22, the court focused on this issue—that defendant claimed to have served unverified responses before the hearing. The court expressed its concern at that time and invited the defense to file the metadata concerning service. The court also gave plaintiff leave to file its own metadata to disprove the service.

Defendant did not file any declaration, but on June 26, plaintiff filed a declaration stating that it was responding to a response by the defendant. The court has not received the defendant's filing. Plaintiff

states, though, that defendant concedes that there is no proof that the October 23, 2026, unverified responses were actually served on that date, and that on that basis, the defendant was conceding the motion. So, turning to the merits, the court will

GRANT the motion. The RFAs are deemed admitted, and they can be considered even on an MJOP. Because those admissions establish both liability and damages, the motion is GRANTED. Plaintiff is the prevailing party, so plaintiff can also obtain costs through the normal procedure.

The court will inquire of the defense how it is that this came to pass. The defense submitted in the opposition a sworn declaration from a paralegal that materials were served by email on October 23, 2025. The court needs to have an explanation as to how that came to be. And if counsel mistakenly believed that the declaration was true, the court will need to better understand how it is that an employee of the firm submitted such a declaration and what action or actions the firm has taken to ensure that such an event does not reoccur in this case or any other.